

MASTER SERVICES AGREEMENT

THESE TERMS AND CONDITIONS, TOGETHER WITH THE DPA (AS DEFINED HEREIN), CONSTITUTE A LEGALLY BINDING AGREEMENT (the "Agreement") BETWEEN: (i) **AML DEALCHECK LIMITED**, A COMPANY REGISTERED IN ENGLAND WITH COMPANY NUMBER 15893339 AND WHOSE REGISTERED OFFICE IS AT 71-75 SHELTON STREET, COVENT GARDEN, LONDON WC2H 9JQ ("We", "Us", or "Our"); and (ii) **DOWLEY TURNER REAL ESTATE LLP** AND WHOSE REGISTERED OFFICE IS AT 2ND FLOOR 25 ARGYLL STREET, LONDON, UNITED KINGDOM, W1F 7TS ("You" or "Your"). IN CONSIDERATION OF THE MUTUAL PROMISES AND OBLIGATIONS CONTAINED HEREIN, THE FOLLOWING IS AGREED:

1. Definitions and interpretation.

- 1.1. In this Agreement and each Order Form, unless expressly stated otherwise, capitalised expressions will bear the meanings given to them in the Annex (*Glossary*).
- 1.2. Unless the context requires otherwise, words in the singular will include the plural and vice versa, and words importing individuals will be deemed also to include reference to incorporated and unincorporated associations and vice versa.
- 1.3. Headings are included for ease of reference only and will not affect the construction of this Agreement or any Order Form.
- 1.4. A reference to the "Annex" is to the annex to this Agreement. All references to this Agreement include the Annex. Unless otherwise stated, a reference to a "Clause" is a reference to a (sub)clause of these terms.
- 1.5. A reference to a statute or statutory provision is a reference to it as it is in force for the time being, taking account of any amendment, consolidation, extension, or re-enactment, and includes any subordinate legislation for the time being in force made under it.
- 1.6. Words preceding "include", "includes", or "including" will be construed without limitation by the words following them.
- 1.7. Any reference to either party to this Agreement will include such party's successors and assigns (immediate or otherwise).
- 1.8. References to "writing" or "written" include email but not fax.
- 1.9. In the event of any conflict or inconsistency between: (i) this Agreement and a particular Order Form, the provisions of such Order Form will prevail; (ii) the DPA and the remainder of this Agreement, the provisions of the DPA will prevail.

2. This Agreement and Order Forms.

- 2.1. This Agreement will not oblige Us to provide You with any access or use of the Software or for Compliance On Demand to provide any Additional Services unless and until both You and We execute and enter into a specific Order Form and you have acknowledged Compliance On Demand's terms of business. Each Order Form will form a separate contract between You and Us, but no Order Form will enter into force or be legally binding unless: (i) it has been executed by or on behalf of both You and Us; and (ii) as at the date of such execution, this Agreement is still effective and has not expired or been terminated.
- 2.2. Any amendment to this Agreement made in accordance with Clauses 15 or 16.6 will be deemed to apply, with effect from only from (but not before) the date on which such amendment is agreed or (deemed to be) accepted by the parties, to all Order Forms in effect at such date and all future Order Forms that You and We may subsequently enter into.
- 2.3. By entering into any Order Form pursuant to this Agreement, each party will be deemed to have restated the warranties given in Clause 10.1 as at the date of such Order Form.

3. Your access to and use of the Software.

- 3.1. Subject to Your full compliance with the terms of this Agreement and the relevant Order Form, and in consideration of the Software Fees (each to the extent applicable), We grant to You (subject to the limitations

stipulated in Clause 3.2) a non-exclusive, non-transferable, non-sublicensable, and revocable right to use and access the Software as a service solely during the term of the relevant Order Form.

- 3.2. The rights and/or licences granted under Clause 3.1 will be effective and valid solely and strictly: (i) during the term of the relevant Order Form; and (ii) for internal business purposes only (and not for any third party's benefit).
- 3.3. You will ensure compliance with the Maximum User Limit and any other usage restrictions, limitations, and conditions (including without limitation data usage limitations) stipulated in the relevant Order Form. We may at Our discretion monitor such compliance from time to time. Without prejudice to any other right or remedy available to Us, in the event that You are in breach of this Clause 3.3, You will be liable to pay for the number of Users above the Maximum User Limit for the period of such breach in accordance with Our then-current standard pricing.
- 3.4. You will: (i) be liable for all acts, defaults, and omissions of the Users as though they were Your own; (ii) only provide Users with access to the Software via the access method provided by Us, and will not provide access to (or permit access by) anyone other than an authorised User; and (iii) procure that each User is aware of, and complies with, the obligations and restrictions imposed on You under this Agreement and the relevant Order Form as though they applied to such User.
- 3.5. To access and use the Software, You must (and, where applicable, must ensure that the Users): (i) ensure that any minimum user requirements or conditions stated within the Dependencies are fulfilled; and (ii) complete any applicable account registration process. You must ensure that each User either keeps a secure and confidential password for their use.
- 3.6. You will not (and will not permit any third party) to share Your login credentials or to allow the use of the same login credentials by more than one (1) User.
- 3.7. You acknowledge and understand that You are solely responsible for ensuring that the API is compatible with Your existing network and systems, and for ensuring that Your systems and environment conform with any relevant minimum requirements stated in the Dependencies.
- 3.8. Our provision of the Software is not contingent upon the delivery of any future functionality or features, or dependent on any oral or written public comments made by Us, Our Affiliates, or any of their respective representatives regarding future functionality or features.
- 3.9. We may, by notifying You in writing (unless We are not legally permitted to give to You any such notification, in which case We may do so without notification), immediately suspend Your (and all or some of the Users') access to and/or use the Software (or any part of it) if: (i) We reasonably suspect that there has been a misuse of any part of the Software that is in breach of this Agreement and/or the relevant Order Form; (ii) You fail to pay any sums due to Us by the relevant due date for payment; or (iii) if We are required to do so by law or by a court of competent jurisdiction or pursuant to a governmental or regulatory order. If the reason for the

suspension is misuse or breach pursuant to subsection (i) under this Clause 3.9, then, without prejudice to Our other rights and remedies available to Us under this Agreement, the relevant Order Form, or applicable law, We will promptly take steps to investigate the issue and may restore or suspend access/use at Our discretion. If the reason for the suspension is pursuant to subsection (ii) of this Clause 3.9, then access will be restored promptly after We receive the relevant payment (together with any applicable interest thereon) from You in full and cleared funds. Fees will remain payable by You during any period of suspension pursuant to this Clause 3.9 notwithstanding the fact that You or some or all of Users may not be able to access or use the Software.

- 3.10. The purpose of the Software is to support, but not replace, Your AML policies, procedures, and risk-based decision-making processes. You remain solely responsible for all compliance outcomes, decisions, and regulatory reporting.
- 3.11. The Software includes the following functional components (subject to Your fulfilment of and compliance with the below-stated dependencies and restrictions) (i) a secure web-based portal incorporating Two-Factor Authentication (2FA) to control user access; (ii) Role-Based Access Control (RBAC) within the user interface, permitting Users to create, modify, lock, submit, and approve AML screening requests in accordance with their assigned access privileges; (iii) a restricted-access administrative interface for the onboarding and offboarding of User(s), and for the generation of limited organisation-level usage reports; and (iv) a data retention policy engine that enforces the deletion of all detailed records, attachments, and other associated content upon either (a) manual deletion (b) the passage of specified time thresholds, as set forth in this Agreement or otherwise agreed in writing between the Parties.
- 3.12. The Software requires access to standard browser-based client resources, including but not limited to temporary memory (RAM), local storage, and JavaScript execution capabilities. You must ensure that such access is neither restricted nor disabled by device policies, browser settings, or third-party software, as such restrictions may result in partial or complete failure of the Software to function as intended. We accept no liability for failures resulting from Your own hardware configuration or local restrictions. It is Your sole responsibility to provide an environment in which the Software may run without obstruction.
- 3.13. The Software may utilise browser cookies and similar technologies to store user session data, authentication tokens, and configuration preferences. Disabling cookies or restricting their use through browser settings or third-party privacy tools may impair or prevent access to certain features or services. You are responsible for informing authorised users of the requirement for cookies and for ensuring that cookies are enabled where necessary. We shall not be held liable for any disruption or loss of functionality arising from Your failure to enable or permit the operation of cookies.
- 3.14. Use of the Software in unsupported configurations may result in degraded functionality, reduced compatibility, or unintended outcomes for which We shall bear no responsibility. You acknowledge that any support services that We may agree to offer may be limited or unavailable in such cases.
- 3.15. Unless otherwise agreed in writing, the use of the Software is restricted to within the United Kingdom (England, Scotland, Wales, and Northern Ireland) and such other jurisdictions as may be expressly specified in the Order Form.

4. Additional Services.

- 4.1. Where expressly provided for in the relevant Order Form, Compliance On Demand will, in consideration of the Additional Fees, provide to You the relevant Additional Services in all material respects.
- 4.2. The Additional Services are provided on the basis set out in Compliance On Demand's terms of business "Working With Us" which have been provided to you separately. In the event of any conflict between this Agreement and Working With Us, in relation to the Additional Services, the terms and conditions of Working With Us will prevail. Guidance will be provided within a reasonable time and such Guidance will be limited to the number of hours stated in the Order Form (and obligations in relation to the provision of such Guidance will be deemed completed once that number of hours has been provided to You or Users).
- 4.3. Where the relevant Order Form states that You will be provided with any Deliverables: (i) commercially reasonable efforts will be used to provide such Deliverables as doc, .docx., .odt, .xls, .xlsx, .ppt, .pptx, or .pdf files by email to You (or in such format and on such media as We may otherwise agree with You in writing) within a reasonable time; and (ii) You will be deemed to have accepted each Deliverable unless, within ten (10) calendar days of Our initial provision to You of the same, You have emailed Our Support Email Address with reasonably comprehensive details of the relevant defect thereof or the relevant non-conformity thereof with this Agreement (in which case, We and You will work together in good faith to resolve any such defect or non-conformity and We will then resubmit the relevant Deliverable to You, whereupon the provisions of this subsection (ii) regarding acceptance will apply to such resubmitted Deliverable).

5. Your responsibilities.

- 5.1. You will provide Us with all necessary information and, where we reasonably request, actively and reasonably co-operate with Us regarding: (i) Your (and Your Users') access to and use of the Software; (ii) the proper performance of Your obligations hereunder; and (iii) performance of the Additional Services.
- 5.2. You will (and will ensure that Your Users will) devote reasonable and sufficient time and patience to understanding how to operate the Software correctly.
- 5.3. You will ensure that no part of Your Data includes or constitutes Destructive Code.
- 5.4. You will ensure that each Report is subject to reasonably prompt, sufficient, and appropriate human review and verification by an appropriately qualified, authorised, and competent member of Your compliance staff. You will not (and will ensure that none of Your staff, personnel, employees, directors, officers, agents, representatives, consultants, Affiliates, or Users will) rely on the contents of any Report as a sole source of truth, accuracy, or factual information or decide to take (or not to take) any relevant action solely and entirely on the basis of such contents.
- 5.5. You must notify Us in writing promptly on request of the name and contact details (including telephone number and email address) of Your business's appointed Money Laundering Reporting Officer (MLRO) or MLNO (Money Laundering Nominated Officer), as applicable, together with any duly authorised deputy thereof. You acknowledge that such individual(s) will be Our primary contact at Your organisation for the purposes of managing and performing this Agreement. If the identity of Your MLRO or MLNO (or their duly authorised deputy) changes, You will immediately update Us accordingly (and, until We are thus notified, We will be entitled to treat the relevant individual last notified to Us as Your authorised representative). Unless Your MLRO or

MLNO (or their duly authorised deputy) has already agreed otherwise with Us in writing, You will ensure that any and all email correspondence to Us will copy in such individual and You acknowledge that We may at Our discretion copy in Your MLRO or MLNO (and/or their duly authorised deputy) to any of Our communications to You. Any notice, information, instruction, or other information given to Us by Your MLRO or MLNO (or their duly authorised deputy) will be deemed to have been given by You.

6. Fees and payment.

- 6.1. You will pay to Us the Fees (and any other charges agreed between You and Us) set out in the Order Form in accordance with this Clause 6 and the payment terms stated in the Order Form, without set-off in respect of any liability on Our part.
- 6.2. You acknowledge that the Additional Fees that you will pay to Us are received by Us on behalf of Compliance On Demand and we will remit those Additional Fees to Compliance On Demand.
- 6.3. You will (in the manner set forth in such invoice or the relevant Order Form) pay each invoice submitted by Us to You in full and cleared funds by direct debit to Our bank account nominated by Us from time to time in writing. You will complete any and all direct debit mandates necessary to enable Us to collect the Fees from You by way of direct debit within the timeframe for Your payment of invoices stipulated in the relevant Order Form (or, to the extent the Order Form does not stipulate such timeframe, within fourteen (14) calendar days of Our submission of such invoice to You). You acknowledge that We will be authorised to debit the Fees from your relevant payment account by direct debit.
- 6.4. If We have not received payment by the relevant due date of any sum due to Us under an invoice submitted to You under a particular Order Form, then (without prejudice to any other rights and remedies available to Us), We may without liability: (i) charge interest to You at the annual rate of 4% above the Bank of England's base rate from time to time on the overdue sum from the due date until payment of the overdue sum (and such interest will accrue on a daily basis from the due date until actual payment of the overdue amount, whether before or after judgment, and You will pay the interest together with the overdue amount); and/or (ii) suspend all or part of Our performance of Our obligations under this Agreement and such Order Form until such payment has been received by Us in full and cleared funds, or disable Your (and any and all Users') access to all or part of the Software until We receive such payment in full and cleared funds.
- 6.5. The Fees and any other charges payable by You to Us under or in connection with any Order Form are: (i) non-cancellable and non-refundable; and (ii) exclusive of any applicable value-added tax (VAT), which will be added to Our invoices at the appropriate rate(s).
- 6.6. You will make all payments under each Order Form without withholding or deduction of, or in respect of, any and all taxes, unless required by law. If any such withholding or deduction is required, You will, when making the payment to which the withholding or deduction relates, pay to Us such additional amount as will ensure that We receive the same total amount that We would have received if no such withholding or deduction had been required.
- 6.7. We may increase the Fees payable by You under each Order Form in respect of the next relevant Subscription Year, provided that: (i) the Fees will not be increased more than once in any Subscription Year; (ii) subject to Clause 6.7, any such increase in respect of the next Subscription Year does not exceed the greater of five per cent (5%) or the CPI Increase; and (iii) We notify You in writing of such increase at least thirty (30) calendar days prior to the commencement of the

next Subscription Year. Notwithstanding the foregoing, We may increase the Fees at any time by way of written notice to You where any costs that We incur in providing the Services to You that are determined and imposed by His Majesty's Customs and Revenue, the Financial Conduct Authority, or any other regulatory body or authority with jurisdiction, power, or authority over Us ("**Regulatory Costs**") are increased (and, in such circumstances, the limitations specified in the previous sentence will not apply to any increase in such Regulatory Costs).

- 6.8. To the extent any part of the Software or the Additional Services encompasses the provision of online searches through a third party (including but not limited to searches concerning registered titles, sanctions, adverse media, and politically exposed persons) and such third party increases their costs of providing such searches by more than the CPI Increase or five per cent (5%) in respect of any particular Subscription Year, then, notwithstanding Clause 6.6, We may increase Our Fees in such a manner to enable Us to pass on to You the full cost of any such increase stipulated by such third party.
- 6.9. If a particular Order Form terminates or expires (other than due to termination by You pursuant to and in accordance with Clause 7.3 and except as expressly stated in Clauses 7.4 and 15.3), You will not be entitled to any refund or discount of any Fees or other charges already paid by You in respect of any period of time during which the Software (or any services provided by Us under such Order Form) is or are not provided or made available to You.

7. Term and termination.

- 7.1. This Agreement will commence on the date on which both You and We enter into it and, unless terminated earlier in accordance with its provisions, this Agreement will continue in full force and effect for a period of sixty (60) months, whereupon it will (subject to Clause 7.8) expire without notice. For clarity, this Clause 7.1 does not govern the duration of any Order Form.
- 7.2. Each Order Form will become effective on the Subscription Start Date (as stated in such Order Form) and will (subject to earlier termination in accordance with its provisions) continue to be effective until the end of the Subscription Term, whereupon it will immediately expire.
- 7.3. Without affecting any other right or remedy available to it, either party may terminate this Agreement and/or any Order Form with immediate effect by giving written notice to the other party if: (i) the other party commits a material breach of any other term of this Agreement or such Order Form, which breach is irremediable, or, if such breach is remediable, fails to remedy that breach within a period of twenty-eight (28) calendar days after being notified in writing to do so (and, without prejudice to the generality of the foregoing, any breach of Clauses 3.2, 3.3, or 6 will constitute a material breach, and any breach of Clauses 4.7, 9, or 12.5 will constitute a material and irremediable breach); (ii) the other party suspends, or threatens to suspend, payment of its debts or is unable to pay its debts as they fall due or admits inability to pay its debts; (iii) the other party takes any step or action for or in connection with its entering administration, provisional liquidation, or any composition or arrangement with its creditors (other than in relation to a solvent restructuring), being wound up (unless for the purpose of a solvent restructuring), having a receiver appointed to any of its assets or ceasing to carry on business, or applying to court for or obtaining a moratorium (or, if the step or action is taken in a jurisdiction other than England and Wales, in connection with any analogous procedure in the relevant jurisdiction); or (iv) the other party suspends or ceases, or threatens to

suspend or cease, carrying on all or a substantial part of its business.

- 7.4. Either You or We may terminate an Order Form without cause by way of giving prior written notice to the other party, provided that termination of such Order Form pursuant to such notice will take effect immediately upon (but not before) the expiry of: (i) a period of thirty (30) consecutive calendar days beginning on the commencement of the relevant Subscription Term; or (ii) the first or the final Subscription Year falling during the Subscription Term, on the condition that such notice is received by the non-terminating party, in accordance with Clause 15, at least thirty (30) calendar days prior to such date. In the event of termination pursuant to and in accordance with this Clause 7.4, You will receive a pro-rated refund of any pre-paid Fees (less a reasonable administration fee of not less than £50) corresponding to any period following the date of termination, save that, where You terminate the relevant Order Form pursuant to subsection (ii) of this Clause 7.4 with the intention or effect that such Order Form terminates upon the expiry of the first Subscription Year falling during the Subscription Term, You will (unless We consent to waive such requirement in writing, such consent being at Our sole and absolute discretion and without prejudice to Clause 16.8) remain liable to pay to Us a VAT-exclusive termination payment of two thousand pounds (£2,000). We will invoice such sum to You following receipt of Your notice to effect such termination pursuant to and in accordance with this Clause 7.4 and You will pay such invoice in accordance with the provisions of Clause 6.
- 7.5. Without affecting any other right or remedy available to Us, We may terminate this Agreement and/or any Order Form(s) with immediate effect by giving written notice to You if: (i) You fail to pay any amount due under any Order Form within thirty (30) calendar days of the original relevant due date for payment; (ii) You are in breach of Your obligations under Clause 9; (iii) Your financial position deteriorates to such an extent that, in Our reasonable opinion, Your capability of fulfilling Your obligations under this Agreement or any Order Form adequately has been placed in jeopardy; or (iv) You undergo, or are within the next six (6) months to undergo, a change of ownership or Control.
- 7.6. Immediately upon termination or expiry of any Order Form (howsoever caused): (i) with the exception of the licence granted in Clause 8.4, any and all rights, permissions, authorisations, and licences granted by Us to You under such Order Form (including without limitation those granted under Clause 3.1, as incorporated into such Order Form) will cease to have effect and will immediately terminate without notice (and You will cease to access or make any use of the Software pursuant to such Order Form); (ii) We will cease to provide and make available, under or in connection with such Order Form, the Software and any and all services that We have agreed to provide under or in connection with such Order Form; (iii) each Disclosing Party will destroy and irretrievably and securely delete any and all materials (including without limitation any electronic copies in its possession, custody, or control) containing the Confidential Information of the Receiving Party, unless it requires such Confidential Information in order to perform its obligations or exercise its rights under any other Order Form that is still ongoing as at the date of such termination; (iv) any provision of such Order Form that expressly or by implication is intended to come into or continue in force on or after such termination or expiry will survive and continue in full force and effect; and (v) unless You still require this in order to exercise Your rights under any other Order Form that is still going as at the date of such termination, You will irretrievably and securely erase (and, if applicable, uninstall and remove) any and all copies of any

related components, applications, and any documentation in relation to the Software provided or made available by Us from all computers, devices, networks, and systems under Your possession, custody, or control, and You will certify promptly thereafter to Us in writing that You have done so. For clarity, nothing in this Clause 7.6 will require You to destroy, delete, or return any Reports or accepted Deliverables provided to You under the relevant Order Form.

- 7.7. Termination or expiry of any Order Form will not affect this Agreement or any other ongoing Order Forms.
- 7.8. Termination or expiry of this Agreement alone (without specific termination of a particular Order Form) will not cause any ongoing Order Form to terminate, and any such ongoing Order Form will (subject to termination or expiry thereof in accordance with its provisions) continue in full force and effect and will continue to be governed by the terms of this Agreement as fully as if this Agreement were still in force. Any provision of this Agreement that expressly or by implication is intended to come into or continue in force on or after the termination or expiry of this Agreement will survive and continue in full force and effect.
- 7.9. Termination or expiry of this Agreement or any Order Form will not affect any rights, remedies, obligations, or liabilities of either party that have accrued up to the date of such termination or expiry, including the right to claim damages in respect of any breach that existed at or before the date of such termination or expiry. Without prejudice to the generality of the foregoing, such termination or expiry will not affect Our right to receive any sums due and payable by You to Us under such Order Form.

8. Proprietary rights.

- 8.1. You acknowledge and agree that all rights (including without limitation Intellectual Property Rights), title, and interest in and to the Software are owned by and will remain owned by Us (or, as applicable, Our licensors). Except as expressly specified herein, You are granted no right, title, interest, or licence under this Agreement or any Order Form, directly or indirectly, in or to any part of the Software.
- 8.2. You or Your licensors (as applicable) retain all rights, title, and interest in and to Your Data and Confidential Information. You are solely responsible for obtaining any and all consents, permissions, authorisations, approvals, and rights to provide (and, in accordance with Clause 8.3, license) Your Data to Us under this Agreement and each Order Form.
- 8.3. You hereby grant to Us (solely for the duration of the term of each Order Form) a non-exclusive, worldwide, irrevocable, royalty-free, and fully paid-up licence for Us (and each of Our direct and indirect subcontractors) to access, use, analyse, scan, process, copy, and otherwise utilise Your Data to the extent necessary to perform Our obligations and/or exercise Our rights under such Order Form and this Agreement.
- 8.4. We (or, as applicable, Our licensors) will absolutely own, from the moment of their creation, any and all rights, title, and interest in and to the Reports and the Deliverables. We hereby grant to You a non-exclusive, irrevocable, perpetual, royalty-free, fully paid-up licence to use any and all Reports and Deliverables solely and strictly as necessary for Your (and/or Your Affiliates') legitimate business purpose of undertaking AML Checks and complying with applicable anti-money-laundering laws, regulations, and codes of practice, provided that You will not disclose the Reports or the Deliverables (and will not transfer, assign, or sublicense the rights granted in this Clause 8.4) to any third party other than Your Affiliates or, to the extent strictly required in order for You to exercise Your rights under this Agreement or the relevant Order Form, Your professional advisers, or to a court of competent jurisdiction, supervisory authority, or regulator

that has requested one (1) or more copies thereof (and, if You do disclose or share copies of any Report or Deliverable with any third party, then, to the extent fully permitted under applicable law, We will have no liability for their reliance upon any such Report or Deliverable). For clarity, this Clause 8.4 (including without limitation the grant of the licence contained therein) will survive the termination or expiry of this Agreement or the relevant Order Form and continue in full force and effect without limit in point of time.

- 8.5. We will absolutely own any and all rights and title (which will vest automatically in Us) in and to: (i) any modifications, adaptations, developments, or any derivative works of or to the Software resulting from Your or any User's use of or access to the Software ("**Improvements**"); and (ii) Derived Data. If, by operation of law or otherwise, the foregoing is not effective, We will have all exclusive rights of use and exploitation in the Improvements and the Derived Data unlimited as to time, territory, and exploitation method and without charge to Us or further compensation to You or any third party, provided that no data or information within or constituting such Improvements or Derived Data includes Your Confidential Information or any Personal Data.
- 8.6. We may use and exploit any such feedback and suggestions for improvement relating to the Software that You or any Users provide to Us without charge or limitation.
- 8.7. Subject to Clause 8.10, We will defend You against any third-party claim that Your use of the Software or any Report or Deliverable in accordance with this Agreement and the relevant Order Form infringes any third-party Intellectual Property Right and, subject to Clauses 8.10 and 11.3, will indemnify You from and against any damages suffered or incurred by You and which are finally awarded by a court of competent jurisdiction or required to be paid under the terms of a full and final settlement of any such third-party claim, provided that: (i) We are given prompt written notice of such claim by You, which notice will contain all relevant particulars of such claim; (ii) You provide Us (at Our reasonable expense) with reasonable co-operation and assistance in the defence and settlement of such claim; (iii) We are given sole authority to defend or settle such claim; (iv) You and Your staff and representatives make no admission of liability or fault either on Your or Our behalf; (v) You use Your best efforts to mitigate such damages (and any other related Losses); and (vi) where We undertake any of the remedial actions described in Clause 8.8, You will (and will ensure that all Users will), immediately upon Us taking such action, cease to use all parts of the Software, Report, or Deliverable to which the relevant third-party claim relates.
- 8.8. In the defence or settlement of any claim pursuant to Clause 8.7, We may at Our sole and absolute discretion (and Our own expense) either: (i) procure for You the right to continue using the Software, the relevant Report, and/or the relevant Deliverable (as applicable) in the manner contemplated by this Agreement and the relevant Order Form; or (ii) replace or modify the Software, the relevant Report, and/or the relevant Deliverable (as applicable) so that it becomes non-infringing. Alternatively, where the foregoing remedies stipulated in this Clause 8.8 are not achievable through Our commercially reasonable efforts, We may in such circumstances terminate the relevant Order Form(s) by providing written notice to You (such notice having immediate effect) and thereafter refund to You a pro-rated portion of any Fees already paid by You to Us and which correspond to the unused period of the relevant Order Form.
- 8.9. Subject to Clause 11.1, We will not in any circumstances have any liability (including in respect of the indemnity provided under Clause 8.7) if the alleged infringement is based wholly or partially on: (i) any modification of the Software or any

Report or Deliverable or any services (or any part thereof) by anyone other than Us; (ii) Your or any User's use, access, or installation of the Software or any Report or Deliverable otherwise than in accordance with this Agreement and the relevant Order Form, or in a manner contrary to the reasonable instructions given to You by Us; (iii) Your or any User's access or use of the Software or the relevant Report or Deliverable (as applicable) after notice of the alleged or actual infringement from Us or any third party; (iv) use or combination of the Software or the relevant Report or Deliverable (as applicable) with any other materials, software, or hardware, in circumstances where, but for such combination, no infringement would have occurred; (v) Your Data; (vi) any breach of this Agreement or the relevant Order Form by You or Your negligence or wilful misconduct; (vii) access or use of the Software or the relevant Report or Deliverable (as applicable) by anyone other than You, Us, or a User; (viii) any specific feature or modification to the Software or a particular Report or Deliverable provided by Us at Your request; or (ix) any third-party components or elements of the Software constituting Open-Source Software.

- 8.10. Subject to Clause 11.1, the provisions of Clauses 8.8 to 8.10 inclusive set out Your sole and exclusive remedies (howsoever arising, including in contract, tort, negligence or otherwise) for any claim that Your (or any User's) access and/or use of the Software or any Report or Deliverable in accordance with this Agreement and the relevant Order Form infringes any third-party Intellectual Property Rights.
- 8.11. You will defend Us and fully indemnify Us (and keep Us fully indemnified) from and against any and all Losses that We incur or suffer in respect of any third-party claim concerning: (i) Your Data (or Our access, use, analysis, scanning, processing, copying, or other utilisation thereof in accordance with this Agreement pursuant to Clause 8.3); or (ii) any breach by You of Clauses 3, 8, or 9.

9. Restrictions.

You will not (and will ensure that none of Your Users, Affiliates, staff, personnel, consultants, officers, directors, representatives, agents, or subcontractors will): (i) attempt to reverse-compile, disassemble, reverse-engineer, translate or convert, modify, copy, discover or detect any underlying components of the algorithms or logic of the Software or otherwise reduce to human-perceivable form all or any part of the Software, except as may be allowed by any applicable law incapable of exclusion by this Agreement; (ii) license, (re)sell, transfer, rent, lease, distribute, exploit, or otherwise deal in or encumber the Software or make the Software available to anyone other than You or the Users; (iii) use any part of the Software to store or transmit material that is infringing, defamatory, malicious, abusive, menacing, seditious, pornographic, discriminatory, threatening, liable to incite racial hatred or acts of terrorism, or otherwise unlawful or illegal, or to store or transmit material in violation of third-party privacy rights or Intellectual Property Rights; (iv) use the Software to send spam or unsolicited messages in violation of applicable law; or (v) copy, modify, transmit, distribute, frame, or mirror any Software in any form or media or by any means; (vi) use the Software to store or transmit Destructive Code, or use the Software in any way that is unlawful, illegal, or fraudulent; (vii) interfere with, damage, or disrupt the integrity or performance of the Software or third-party data; (viii) attempt to gain or assist third parties to gain unauthorised access to the Software or Our (or Our Affiliates') systems or networks; (ix) access the Software to monitor its availability, performance, or functionality, or for any other benchmarking or competitive purposes; (x) permit any part of the Software to be integrated with any third-party product

without Our express prior written consent; (xi) use, copy, modify, adapt, correct errors, or create derivative works from, any part of the Software except as expressly permitted herein; (xii) attempt to circumvent, bypass, or interfere with any security features of the Software or any relevant rate limits, restrictions, or protective measures; (xiii) access or use any part of the Software to train, develop, or build any software, product, or service that competes with or is substantially similar to the Software; or (xiv) exploit, disclose, or share any part of any Report or Deliverable with, or make the same available to, any third party for monetary consideration or other commercial gain.

10. Warranties and disclaimers.

- 10.1. You and We each warrant: (i) to have full right, title, and authority to enter into this Agreement (and each Order Form) and to perform the relevant obligations thereunder; and (ii) to be validly incorporated, organised, and subsisting in accordance with the relevant place of incorporation's laws.
- 10.2. Without prejudice to Clause 10.4, You acknowledge and agree that Our technical support obligations under this Agreement and any Order Form are limited to issues directly related to the Software's functionality, features, and configuration. Except to the extent any such issue or Incident constitutes an Exception, We will use Our commercially reasonable efforts to resolve any such issues and any Incidents that You report to Us promptly and directly to Us by way of email to Our Support Email Address and will use Our commercially reasonable efforts to update You regarding the resolution status.
- 10.3. You acknowledge and accept that We are not responsible or liable to You to the extent that You (or any User) accesses or uses the Software (or any part thereof) in a manner that breaches this Agreement or such Order Form or uses the Software (or any part thereof) with other software or services or on equipment with which it is incompatible (unless We had beforehand and in writing recommended or required the use of that other software or service or equipment).
- 10.4. The Software and the Additional Services are provided to You on an "as is" basis, and (to the fullest extent permitted by applicable law and subject to Clause 11.1), We make no warranties, representations, or guarantees relating to the Software and/or the Additional Services (including without limitation any error or hallucination in the production of any Adverse Media Report included as part of the Additional Services), and hereby expressly disclaim all warranties, express or implied, including without limitation those of accuracy, satisfactory quality, fitness for a particular purpose, non-infringement, or that any particular result will be attained at all or by a particular date.
- 10.5. Without prejudice to Clause 10.4, and to the fullest extent permitted by applicable law, We do not represent or warrant (and give no guarantee or assurance) that: (i) Your (or Users') use of the Software will meet Your requirements; or that (ii) Your (or Users') use of or access to the software will be uninterrupted, timely, secure, or free from error, defects, or bugs, or that any errors, defects, or bugs will be corrected.
- 10.6. You additionally acknowledge and accept that: (i) the information generated by the Software (including without limitation each Report) is intended solely to assist You and the Users in compiling the relevant information needed to perform AML Checks, and the Software is not a substitute for Your (and Your Users') own judgement in determining how to approach or undertake AML Checks (and You will be solely and fully responsible for any use that You or the Users make of such information); (ii) the performance of the Software and the quality of any Reports or Guidance depends on the completeness, accuracy, integrity, accessibility, relevance,

and quality of Your Data and any other information that You make available to Us and/or via the Software (and, to the fullest extent permissible by applicable law, We will not be liable for any Losses resulting from any inaccuracy or omission of any Report or any Guidance to the extent the same results from any deficient, inaccurate, misleading, incomplete, or qualitatively inappropriate information, statements, representations, or data provided by You); and (iii) any and all Reports are for initial guidance and Your and Users' convenience, and that We do not involve human oversight in the generation of any Report by the Software to check its accuracy, quality, or fitness for any particular use, reliance, or consumption. Accordingly, to the fullest extent permitted by applicable law, We will not be liable for any Losses suffered or incurred by You or Your Affiliates and which arise out of, under, or in connection with Your reliance upon a Report to the extent that, in relation to such Report, You did not comply with or are in breach of Clause 5.3.

- 10.7. To the extent that Your access to the Software is made available by the use of third parties and/or third-party plug-ins or application programming interfaces (APIs), We will (to the fullest extent permitted by applicable law) have no liability for the performance of those third-party plug-ins or APIs or their compatibility with the Software.
- 10.8. The Software may interoperate, integrate, or be used in connection with third-party offerings and services ("**Third-Party Offerings**"). Subject to Clause 11.1, We are not responsible for, and hereby disclaim any liability for, any act or omission of any provider of Third-Party Offerings or the operation of any Third-Party Offerings, including access to, modification of, or deletion of data, regardless of whether We endorse, approve, or supports any such Third-Party Offerings. We do not guarantee the interoperation, integration, or support of any Third-Party Offerings. Subject to Clause 10.11, We may, at any time and at Our discretion, modify the Software, which may result in the failed interoperation, integration, or support of Third-Party Offerings. You have sole discretion as to whether to purchase or connect to any Third-Party Offerings, and Your use of any Third-Party Offering is governed solely by the terms thereof. For the avoidance of doubt, no part of our Fees relate to Third Party Offerings, some of which may be behind a paywall operated by such persons.
- 10.9. You acknowledge and accept that the Software's Availability may be subject to scheduled or emergency maintenance, delays, interruptions, errors, or other problems resulting from use of the Internet or public electronic communications networks used by You, Us, or third parties. You acknowledge and accept that such risks are inherent in cloud services and that We will (subject to Clause 11.1) have no liability for any such maintenance, delays, interruptions, errors, or problems.
- 10.10. You acknowledge and accept that nothing under this Agreement or any Order Form will require Us to provide You with: (i) any dedicated data back-up or disaster recovery facilities (and You should at all times maintain backups of Your Data); or (ii) any services, systems, or equipment that You or any Users may require to access the Internet (and You are solely responsible for procuring access to the Internet and for all costs and expenses in connection with Internet access, communications, data transmission, and wireless or mobile charges incurred by You in connection with Your use of or access to the Software). Unless otherwise agreed with Us beforehand in writing, We are not obliged to provide You with any assistance extracting or recovering any part of Your Data whether during or after the term hereof. Notwithstanding the foregoing, we will provide you with a paper AML template to enable you to conduct AML due

diligence checks for urgent transactions during any periods of outage.

- 10.11. You acknowledge that, given the Software is provided via the cloud as a service, We may modify the features and functionality of the Services from time to time, provided that: (i) We will not materially decrease the overall functionality or security of such features or functionality; and (ii) where such modification impacts the provisions stated herein, any necessary changes to such provisions are introduced in accordance with Clause 15.

11. Liability. YOUR ATTENTION IS DRAWN TO THIS CLAUSE 11.

- 11.1. Nothing in this Agreement or any Order Form will limit or exclude Our liability for: (i) death or personal injury caused by Our negligence; (ii) fraud or fraudulent misrepresentation; or (iii) any matter in respect of which it would be unlawful for Us to exclude or restrict liability.
- 11.2. Subject to Clause 11.1, We will not have any liability whatsoever (regardless of whether it arises in tort, contract, or in any other way and whether or not caused by negligence or misrepresentation) for any: (i) direct or indirect loss of (or damage to) profit, savings, business, opportunity, revenue, or reputation; (ii) direct or indirect wasted expenditure, costs, or charges; (iii) direct or indirect loss of use or corruption of (or damage to) hardware, software, information, or data (save to the extent that the foregoing does not constitute a Personal Data Breach); (iv) direct or indirect Losses arising out of the lawful termination of this Agreement or any Order Form; (v) actions or inactions taken by Us pursuant to and in accordance with Your instructions; or (vi) indirect or consequential Losses.
- 11.3. Subject to Clause 11.1, Our total liability (including but not limited to liability in contract, tort (including negligence), misrepresentation, restitution, or otherwise) for any Losses suffered or incurred by You and arising out of, under, or in connection with this Agreement or any particular Order Form will not in the aggregate exceed a sum equal to one hundred per cent (100%) of the total value of any and all Fees paid and payable by You to Us in the period of twelve (12) consecutive months immediately preceding the first of any and all events giving rise to Our liability.
- 11.4. Unless either party gives written notice to the other that it intends to make a claim in respect of an event (such written notice identifying such event and the grounds for the claim in reasonable detail) within thirty-six (36) months of the date on which it became (or ought reasonably to have become) aware of the event having occurred (as opposed to it becoming aware of its having grounds to make a claim in respect thereof), the other Party will, subject to Clause 11.1, have no liability for that event.
- 11.5. You and We agree that the limitations of liability set forth herein represent a reasonable allocation of risk and is a fundamental element of the basis of the bargain between Us and You. You acknowledge and accept that the Software and Our services would not be provided without such limitations.

12. Confidentiality and publicity.

- 12.1. You and We (each respectively a "**Receiving Party**") each undertake not to disclose to any person or use any Confidential Information disclosed by the other party (the "**Disclosing Party**"), or such other information which ought reasonably to be regarded as the Confidential Information of the Disclosing Party, except as expressly permitted herein.
- 12.2. Information will not be deemed to constitute Confidential Information to the extent that it: (i) is, or becomes, publicly known (other than through a breach of this Agreement or any Order Form); (ii) is in the possession of the Receiving Party prior to receipt thereof from the Disclosing Party; (iii) is

independently developed by the Receiving Party; (iv) is lawfully disclosed to the Receiving Party by a third party not subject to a confidentiality obligation relating to such disclosure; or (v) has been agreed beforehand in writing between You and Us not to be Confidential Information.

- 12.3. Each Receiving Party may disclose the Disclosing Party's Confidential Information: (i) to its staff, Affiliates, or professional advisers who need to know such information for the purpose of exercising the Receiving Party's rights or undertaking its obligations under this Agreement or any Order Form (the "**Permitted Purpose**"), provided that such Receiving Party ensures that such persons fully comply with this Clause 12 as though it applied to them and that such Receiving Party will be liable for any failure of such persons to do so; or (ii) as may be required by law, a court of competent jurisdiction, or any governmental, supervisory, or regulatory authority. No Receiving Party will use the Disclosing Party's Confidential Information for any purpose other than the Permitted Purpose.
- 12.4. You may, during the term of this Agreement, use Our name or logo(s) solely to identify Yourself as Our customer. Save as expressly permitted herein, You will not otherwise use Our name or trade marks without Our prior written consent.
- 12.5. You will not (and will ensure that none of Your staff will) initiate or participate in any action or conduct tending to injure, bring into disrepute, ridicule, damage, harm, or destroy Our (or Our Affiliates') goodwill or reputation.
- 12.6. Unless expressly notified Us in writing that We may not do so, We may (and You hereby authorise Us to) use and display Your business's name and logo on Our website and in Our promotional and marketing materials for publicity purposes for the duration of this Agreement.

13. Data protection and retention.

- 13.1. We and You will each comply with any applicable Data Protection Legislation and the provisions of the DPA.
- 13.2. Subject to Clauses 12, 13.1, and Our obligations under the DPA, We may monitor, collect, store, and use information on Your (and the User's) use of the Software and its performance in order to detect threats or errors to the Software or Our operations and for the purposes of the further development and improvement of the Software and Our services.
- 13.3. Except insofar as We have direct obligations under applicable Data Protection Legislation and except as stipulated in the DPA, You acknowledge We have no control over (and do not endorse or verify) Your Data submitted or provided to Us through the Software and that We may not actively monitor Your Data. You will ensure (and will be solely and fully responsible for) the accuracy, quality, integrity, and legality of Your Data and that its use (including in connection with the Software and any services We provide under and pursuant to any Order Form) complies with all applicable laws.
- 13.4. Without prejudice to Clause 10.10(i), You may upon request download such items of Your Data in a format specified by Us for a period of thirty (30) calendar days following the completion of the relevant Report to which such items specifically relate (the "**Retention Period**") or for such longer Retention Period as we may agree in the Order Form. Following the expiry of such Retention Period, You authorise and instruct Us to delete such items of Your Data from Our systems and servers without notice to You. Subject to Clause 11.1, We will have no liability to You for Our non-retention (and the non-availability and non-accessibility) of such items of Your Data following the expiry of the Retention Period.

14. Notices.

- 14.1. Any notice given under or in connection with this Agreement or any Order Form must be in writing and delivered either by

pre-paid recorded-delivery post (fulfilled by a delivery service recognised in England) or by email to relevant postal or email address stipulated in the latest Order Form entered into by You and Us as being the address for the recipient party's receipt of notices under or in connection with this Agreement and each Order Form. If the recipient party has communicated an alternative email or postal address for the receipt of notices by giving notice in accordance with this Clause 14, then notices given to that recipient party will be sent to the latest alternative address thus communicated.

- 14.2. Any notice will be deemed to have been received: (i) if sent by pre-paid recorded-delivery post, at the time recorded by the delivery service; or (ii) if sent by email, on the date of transmission, provided that no error message, out-of-office, or other automated reply, bounce-back, or other notification of a failure of or delay to transmission is received by the sending party within forty-eight (48) hours of attempted transmission.
- 14.3. This Clause 14 does not apply to the service of any proceedings or any documents in any legal action.

15. Updates

- 15.1. We may, in order without limitation to address any changes to the nature, functionality, or capabilities of the Software made from time to time (subject to Clause 10.11) or to comply with new legal or regulatory requirements, notify You of a newly updated version of the provisions of this Agreement, provided this does not entail any modification to the provisions of any Order Form, the DPA, or Clauses 10.12, 12, or 13 (an "Update"), by giving a written notification to You of such Update by email, together with a copy of the update or a link to a copy of the update (an "Update Notification").
- 15.2. The provisions subject to such Update Notification will be deemed to replace the preceding version of the same for the purposes of this Agreement with effect from the date falling one (1) month after Our providing such Update Notification (or at such later date as We may specify in the Update Notification), and the Order Forms in effect on such date will, with effect from such date, be deemed to incorporate such amended provisions in accordance with Clause 2.2.
- 15.3. In the event that You believe that any Update materially impacts You in an adverse manner, You may, by way of written notice to Us, terminate this Agreement and all Order Forms prior to such Update taking effect pursuant to Clause 15.2 on not less than fourteen (14) calendar days' written notice, which notice will contain details of the adverse impact which has caused You to exercise this right. If You do so, You will receive a pro-rated refund of any pre-paid Fees corresponding to any period after the date of termination.

16. Miscellaneous.

- 16.1. Neither this Agreement nor any Order Form will create any agency, partnership, employment, or joint venture relationship. Each party confirms it is acting on its own behalf and not for the benefit of any other person.
- 16.2. We may assign, novate, subcontract, or otherwise transfer any of Our rights or obligations under this Agreement or any Order Form. You may not do likewise without Our prior written consent.

- 16.3. Neither party will be liable if it is delayed in or prevented from performing its obligations under this Agreement or any Order Form due to a Force Majeure Event. Nothing in the foregoing will exonerate either party from its responsibility to make any legally permissible monetary payment required under this Agreement or any Order Form.

- 16.4. This Agreement (together with each Order Form) constitutes the entire agreement and understanding between You and Us in relation to its subject matter and supersedes all prior representations, assurances, arrangements, understandings, agreements, statements, promises, heads of terms, or warranties (whether written or oral) relating to the same.

- 16.5. The terms of this Agreement and each Order Form are to the exclusion of all other terms and conditions relating to the same, including without limitation any implied by law, custom, practice, and/or course of dealing, and/or any that You may purport to apply, impose, or incorporate under any correspondence, purchase order, or other document issued by You or on Your behalf. Any terms of Your business diverging from the provisions hereof will not be valid, even if We perform any of Our obligations under this Agreement or any Order Form without reservation.

- 16.6. Subject to Clauses 7.2 and 15, no variation of this Agreement or any Order Form will be effective unless effected by way of a written document that expressly refers to it and is signed by both Your and Our respective duly authorised signatories.

- 16.7. The rights and remedies provided under this Agreement and each Order Form are in addition to, and not exclusive of, those provided by law or otherwise.

- 16.8. A waiver of any right or remedy under this Agreement or any Order Form or by law is only effective if given in writing and expressly stated to be a waiver. A waiver of any right or remedy arising from a breach of this Agreement or any Order Form will not constitute a waiver of any other right or remedy arising from any other breach.

- 16.9. If any provision or part-provision of this Agreement or any Order Form is or becomes invalid, illegal, or unenforceable, this will not affect the validity, legality, or enforceability of the rest of this Agreement or, as applicable, the relevant Order Form.

- 16.10. You will comply (and will ensure all Users will comply) with all applicable laws, rules, and regulations governing export that apply to the Software (or any part thereof), and will not export or re-export, the Software (or any part thereof) to, or access or use the Software in, any territory for which an export licence or other approval is required under the applicable laws without having obtained it.

- 16.11. No one other than You or Us have any right to enforce this Agreement or any Order Form. You and We agree that neither You nor We are acting for any third party's benefit.

- 16.12. This Agreement (and each Order Form) and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection therewith (or its subject matter or formation) will be governed by and construed in accordance with English law. You and We irrevocably agree that the English courts will have exclusive jurisdiction to settle any such dispute or claim.

The parties to this Agreement have entered into it on the later of the dates below written:

Signed for and on behalf of **AML DEALCHECK LIMITED** by a duly authorised signatory:

Signature: *P. Palmer*

Name of signatory: Director and Founder

Date: 15.07.2026

Signed for and on behalf of **Dowley Turner Real Estate LLP** by a duly authorised signatory:

Signature:

Name of signatory:

Date:

ANNEX: GLOSSARY

EXPRESSION	MEANING
"Affiliate"	Any entity that directly or indirectly Controls, is Controlled by, or is under common Control with the relevant subject entity.
"Agreement"	This Master Services Agreement, including this Annex (each as varied from time to time in accordance with the provisions hereof).
"Additional Services"	The services (if any) expressly identified as the 'Additional Services' in the relevant Order Form that Compliance On Demand will provide under such Order Form (and in consideration of the relevant Additional Fees) to You, and which may include (as stated in the relevant Order Form) the provision to You of Guidance, Deliverables, or training sessions concerning the Software or legal or regulatory compliance.
"Additional Fees"	The fees expressly identified as the 'Additional Fees' in the relevant Order Form (as amended from time to time in accordance with the provisions hereof) payable by You to Us on behalf of Compliance On Demand in consideration of the Additional Services provided under and pursuant to such Order Form (if applicable).
"AML Checks"	Any and all relevant legal and regulatory requirements to which You and/or Your Affiliates are subject and which relate to the prevention of money laundering and terrorist financing and the determination as to whether or not an individual is involved or engaged in money laundering or terrorist financing activities or is in breach of any international financial or trade sanctions or any non-proliferation treaty and the term "AML" shall be construed accordingly.
"Compliance On Demand"	Means Compliance On Demand Limited a private limited company registered in England and Wales under Company Registration Number 11407033 with its registered office at 71-75 Shelton Street, Covent Garden, London, WC2H 9JQ
"Confidential Information"	Subject to Clause 12.2, the following information (in each case whether or not marked as 'confidential', on whatever media stored, and whether in oral, written, or electronic form): (i) the terms of this Agreement and each Order Form; (ii) information regarding either party's Intellectual Property Rights, technology, assets, products, development plans, strategies, methods, operations, processes, staff, revenue, financial data, marketing strategies, and current and future business plans; (iii) Your Data; and (iv) information whose disclosure would, or would be likely to, prejudice the commercial interests or regulatory obligations of the Disclosing Party or its Affiliates (including, without limitation the identity of its business's clients or customers).
"Control"	The beneficial ownership of more than 50% of the relevant subject entity's issued share capital or voting interests, or the legal power to direct or cause the direction of the management of such subject entity (and "Controls" and "Controlled" will be interpreted accordingly).
"Controller", "Data Protection Legislation", "Personal Data", "Personal Data Breach", "Processor", and "Protected Data"	Each respectively as defined in the DPA.
"CPI"	The UK Consumer Price Index (however such index might be termed) issued by the Office for National Statistics or any other UK government department upon which duties in connection with the compilation and maintenance of such index will have devolved (or, in the absence thereof, such other index as We may specify).
"CPI Increase"	A proportion equivalent to any proportionate rise in the CPI during the period of twelve (12) consecutive months expiring on the date on which We, pursuant to Clause 6.6, notify You of any increase in Fees.
"Deliverables"	Documented policies, procedures, risk assessments, and other materials for Your (and Your Affiliates') internal use (as stated in the relevant Order Form) and which may (if stated in the relevant Order Form) be provided under the Additional Services.
"Dependencies"	The dependencies and minimum requirements that You must ensure You fulfil in order to access and use the Software and which are stated in the relevant Order Form.
"Derived Data"	In each case except to the extent that it comprises Personal Data or Your Confidential Information, any (meta)data derived from Your Data, including any data processed and stored as mathematical constructs, as well as any statistical or aggregated and anonymised data.
"Destructive Code"	Any program or code (including without limitation any and all viruses, worms, trojan horses, spyware, logic bombs and similar files, scripts, agents, things or devices) which may or is intentionally designed to: (i) prevent, impede, disrupt, impair, affect the reliability of, destroy, damage, interfere with, corrupt, or cause undesired effects (including without limitation by way of aesthetic disruptions or distortions) on any program, computer, system, software, equipment, communications, storage media, code, or other information; or (ii) permit any unauthorised third party to access Our (or Our subcontractors' or third-party providers') systems and cause such disablement, destruction, damage, interference, corruption, impairment, disruption, or undesired effects.
"Disclosing Party" and "Receiving Party"	Each respectively as defined in Clause 12.1.
"DPA"	The data processing addendum to this Agreement, which forms an integral part of this Agreement and the provisions of which will be as stated on the date of this Agreement on our Website at www.amldealcheck.ai .
"Exceptions"	Any and all performance or Availability issues concerning the Software: (a) due to or in connection with a Force Majeure Event; (b) that result from the use of services, hardware, or software not provided by Us, including without limitation issues resulting from inadequate bandwidth or which are wholly or partially related to third-party software or services; (c) caused by any Software (or by any failure thereof) that is not run by Us as part of the Software; (d) during or with respect to any pilot, evaluation, beta, pre-release, preview, or trial version of the Software, features, or other software; (e) that result from Your errors or unauthorised lack of action or lack of action when required, or from Your Users, personnel, employees, agents, contractors, or vendors, or anyone gaining access to Our network

EXPRESSION	MEANING
	by means of the Users' passwords or equipment, or otherwise resulting from Your failure to follow appropriate security practices or Our reasonable instructions; or (f) that result from Your (or Your Users' or Your personnel's) failure to adhere to any required configurations, use supported platforms, or follow any of Our acceptable use policies from time to time, or from Your use of the Software in a manner inconsistent with the features and functionality of the Software (for example, by way of attempting to perform operations that are not supported); (g) that result from faulty input, instructions, or arguments; or (h) that result from any attempts to perform operations that exceed prescribed quotas or that We suspect to be abusive.
"Fees"	Collectively, the Software Fees and the Additional Fees (as stipulated in the relevant Order Form).
"Force Majeure Event"	Any event or sequence of events beyond a party's reasonable control preventing or delaying such party from performing its obligations under any part of this Agreement (including without limitation any failure or diminishment of power or telecommunications or third-party data networks or services).
"Guidance"	Any guidance, support, or advice that We may provide to You concerning AML Checks or the contents of a particular Report via the chat function of the Software in response to Your queries submitted through such chat function.
"Improvements"	As defined in Clause 8.5.
"Incident"	A single event, or a series of events, resulting in Unavailability.
"Intellectual Property Rights"	Any and all copyright and neighbouring and related rights, moral rights, trade marks, service marks, business names and domain names, rights in get-up and trade dress, goodwill and the right to sue for passing off, rights in computer software or source code, database rights, rights to use, and protect the confidentiality of, Confidential Information (including know-how and trade secrets) and all other intellectual property rights, in each case whether registered or unregistered and including all applications and rights to apply for and be granted, renewals or extensions of, and rights to claim priority from, such rights and all similar or equivalent rights or forms of protection which subsist now or in the future in any part of the world.
"Losses"	Any and all losses, liabilities, costs (including costs of investigation, litigation, settlement, and judgment), claims, damages, demands, disbursements, expenses (including legal costs on a solicitor and own-client basis), fees, interest, and penalties (including fines imposed by regulatory bodies or supervisory authorities), whether arising in contract, tort (including negligence), breach of statutory duty, misrepresentation, or otherwise.
"Maximum User Limit"	The limitation on the number of Users set forth in the relevant Order Form.
"Open-Source Software"	Any software subject to a version of the General Public License, together with any other 'open source' software falling within the Open Source Definition issued by the Open Source Initiative (www.opensource.org/docs/osd) and any 'free software' as defined by the Free Software Foundation (www.gnu.org/philosophy/free-sw.html).
"Order Form"	A separate written agreement (in the format stipulated by Us) executed by or on behalf of You and Us pursuant to this Agreement in either electronic or physical form and through which You may order the provision of the Software (and, as expressly stated therein, Additional Services), and which fully incorporates the terms of this Agreement.
"Regulatory Costs"	As defined in Clause 6.6.
"Reports"	Any and all reports generated, produced, or displayed by the Software.
"Retention Period"	As defined in Clause 13.4.
"Software"	Our proprietary software, provided via the cloud and as a browser accessible application, known as at the date of this Agreement as 'AML Dealcheck'. The Software incorporates embedded logic to prompt the collection of additional documentation where appropriate and dynamically adjusts its question set based on the nature of the transaction, the characteristics of the parties involved, and relevant property or financial details.
"Software Fees"	The fees identified as the 'Software Fees' in the relevant Order Form (as amended from time to time in accordance with the provisions hereof) payable by You to Us in consideration of Your use of and access to the Software during the Subscription Term of such Order Form.
"Subscription Start Date"	As stated in the relevant Order Form.
"Subscription Term"	A period of thirty-six (36) calendar months commencing on the Subscription Start Date.
"Subscription Years"	Successive periods of twelve (12) consecutive months falling during the Subscription Term and of which the first begins on the Subscription Start Date.
"Support Email Address"	The email address identified in the relevant Order Form as Our Support Email Address or such other successor email address as We may have subsequently communicated to You from time to time in writing.
"Third-Party Offerings"	As defined in Clause 10.8.
"Unavailability"	A period during which no User is able to log into the Software, except due to or in connection with any scheduled or emergency maintenance or any of the Exceptions.
"Update" and "Update Notification"	Each respectively as defined in Clause 15.1.
"User"	A member of Your organisation's direct employees duly authorised by You to use and access the Software subject to and in accordance with this Agreement.
"Website"	Our website located at www.amldealcheck.ai (as updated from time to time).
"Your Data"	Data uploaded, entered into, or otherwise submitted to or via the Software directly by You, Your staff, or Users, or by Us on Your behalf pursuant to Your instructions (in the form such data was in at the time it was initially thus uploaded, entered, or submitted), including any data submitted into (or used in connection with) the Software indirectly via any third-party application that You may use in accordance with this Agreement, which data may include without limitation the Protected Data, information contained in and/or copies of proof-of-identity documents (including without limitation passports, official identity cards, and driving licences), proof-of-address documents (including without limitation utility bills, credit card bills, and council tax invoices), bank and other

EXPRESSION	MEANING
	financial statements, evidence of sources of wealth and funds (including without limitation tax registration documents and tax returns), and documents filed with Companies House and/or other competent authorities.